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Case Number: 23CHCV02410 Hearing Date: July 22, 2026 Dept: F49

Dept. F49

Date: 7/22/26

Case Name: Timothy McGinley and Chloe McGinley vs. Ford
Motor Company; AutoNation Ford Valencia; and Does 1-10

Case No. 23CHCV02410

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

JULY 22, 2026

MOTION FOR
JUDGMENT ON THE PLEADINGS

Los Angeles Superior
Court Case No. 23CHCV02410

Motion filed: 3/10/26

MOVING PARTY: Defendant Ford Motor Company

RESPONDING PARTY: None

NOTICE: OK

RELIEF REQUESTED: An order from this Court granting Defendant Ford Motor Company's Motion for Judgment on the Pleadings as to the fifth cause of action of Plaintiffs' Second Amended Complaint.

TENTATIVE RULING: The motion is GRANTED, without leave to amend.

BACKGROUND

This Song-Beverly Consumer Warranty

Act action arises from alleged defects in a 2021 Ford F-150 (the "Subject Vehicle") manufactured by Defendant Ford Motor Company ("Ford"). Plaintiffs purchased the Subject Vehicle on November 19, 2021.

On July 8, 2024, Plaintiffs filed the operative Second Amended Complaint ("SAC") against Ford, AutoNation Ford Valencia ("AutoNation") (collectively "Defendants"), and Does 1 through 10, alleging violations of Civil Code section 1793.2, breach of the implied warranty of merchantability, fraudulent inducement – concealment, and negligent repair. Defendants answered on September 26, 2024.

On February 9, 2026, the Court granted summary judgment in favor of AutoNation, who was subsequently dismissed from the action. The Court also granted summary adjudication in favor of Ford on the second and third causes of action of the SAC for violations of Civil Code section 1793.2, subdivisions (a)(3) and (b). The remaining causes of action alleged against Ford are the first cause of action for violation of Civil Code section 1793.2, subdivision (d); the fourth cause of action for breach of the implied warranty of merchantability; and the fifth cause of action for fraudulent inducement – concealment.

On March 10, 2026, Ford filed the instant Motion for Judgment on the Pleadings (the "Motion").

No opposition or reply papers have been filed.

ANALYSIS

A motion for

judgment on the pleadings has the same function as a general demurrer but is made after the time for demurrer has expired. (Code Civ. Proc. § 438, subd. (f).) Judgment on the pleadings is proper when “[t]he complaint does not state facts sufficient to constitute a cause of action against that defendant.” (Id., § 438, subd. (c)(1)(B)(ii).) Except as provided by statute, the rules governing demurrers apply. (Civic Partners Stockton, LLC v. Youssefi (2013) 218 Cal.App.4th 1005, 1012.)

As with a

demurrer, any defect must appear on the face of the challenged pleading or from matters that can be judicially noticed. (Code Civ. Proc., § 438, subd. (d); Burnett v. Chimney Sweep (2004) 123 Cal.App.4th 1057, 1064.) In ruling on a motion for judgment on the pleadings, “[a]ll properly pleaded, material facts are deemed true, but not contentions, deductions, or conclusions of fact or law.” (Kapsimallis v. Allstate Insurance Co. (2002) 104 Cal.App.4th 667, 672.)

A.

Meet and Confer Requirement

“Before filing a motion for judgment on the pleadings ... , the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion for judgment on the pleadings for the purpose of determining if an agreement can be reached that resolves the claims to be raised in the motion for judgment on the pleadings.” (Code Civ. Proc., § 439, subd. (a).)

Ford’s counsel attests to meeting

and conferring with Plaintiffs’ counsel via video conference on February 11, 2026 and March 3, 2026 regarding the issues to be raised in the Motion. (Patel Decl., ¶ 2.) The parties were unable to resolve the issues informally. (Ibid.)

The Court

finds that the meet and confer requirement of Code of Civil Procedure section 439, subdivision (a) has been satisfied.

B.

Grounds for Motion for Judgment on the
Pleadings

Ford contends that the SAC fails to
plead specific facts satisfying the heightened pleading standard for fraud, and
seeks a judgment on the pleadings as to the fifth cause of action for
fraudulent concealment.

(1)

Fifth Cause of Action for
Fraudulent Inducement – Concealment

“The required elements for
fraudulent concealment are (1) concealment or suppression of a material fact;
(2) by a defendant with a duty to disclose the fact; (3) the defendant intended
to defraud the plaintiff by intentionally concealing or suppressing the fact;
(4) the plaintiff was unaware of the fact and would have acted differently if the
concealed or suppressed fact was known; and (5) plaintiff sustained damage as a
result of the concealment or suppression of the material fact. [Citations.]” (Rattagan
v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 40.)

Fraud must be specifically pled. (Alfaro
v. Community Housing Improvement System & Planning Assn., Inc. (2009)
171 Cal.App.4th 1356, 1384.) Where a complaint alleges affirmative
misrepresentations, a plaintiff must plead facts showing how, when, where, to
whom, and by what means the misrepresentations were made. (Ibid.) Where
a plaintiff claims fraudulent concealment, the complaint must include “specific
allegations establishing all the required elements, including (1) the content
of the omitted facts, (2) defendant's awareness of the materiality of those
facts, (3) the inaccessibility of the facts to plaintiff, (4) the general point
at which the omitted facts should or could have been revealed, and (5)
justifiable and actual reliance, either through action or forbearance, based on
the defendant's omission.” (Rattagan, supra, 17 Cal.5th, at pp.
43-44.) Conclusory allegations that a defendant made omissions that were
intentional and for the purpose of defrauding the plaintiffs are insufficient.
(Id., at p. 44; Goodman v. Kennedy (1976) 18 Cal.3d 335, 347.)

Ford asserts that the SAC pleads no real

factual allegations supporting fraudulent concealment, instead relying entirely on conclusory allegations based on information and belief. (Mot., at p. 8.) Specifically, Ford contends that the SAC fails to allege: (1) the content of the facts alleged to be omitted, (2) facts establishing Ford's duty to disclose any defect, and (3) justifiable and actual reliance. (Id., at pp. 8-15.)

Ford also contends that the fraud claim is barred by the economic loss rule. (Id., at pp. 15-17.)

(1)

The Content of Omitted Facts

The SAC alleges the following: (1) the Subject Vehicle, specifically the 10-speed automatic transmission, was defective and subject to sudden and premature failure; (2) Ford did not advise Plaintiffs of the defect; (3) Ford knew that other vehicles equipped with the same transmission experienced transmission-related issues causing delayed acceleration, hard shifting, jerking, shuddering, and juddering, presenting a safety hazard and giving Ford reason to know that the transmission installed in the Subject Vehicle was defective; (4) Plaintiffs would not have purchased the Subject Vehicle had they known of the defective transmission and corresponding safety risks; and (5) Plaintiffs suffered harm as a result. (SAC, ¶¶ 65-80.)

The SAC further alleges that Ford was under a duty to disclose the transmission defects, their safety consequences, and the associated repair costs to Plaintiffs because Ford was in a superior position to have knowledge of the defect and Plaintiffs could not reasonably have been expected to discover the defect before purchase. (SAC, ¶ 73.)

Ford contends that the foregoing allegations fail because they do not specify by name the person or persons who "made the alleged omissions." (Mot., at p. 9.) This argument conflates the "how, where, when, to whom, and by what means" requirement for pleading affirmative misrepresentations with the pleading standard for fraudulent concealment. (See *Alfaro*, supra, 171 Cal.App.4th, at p. 1384; *Rattagan*, supra, 17 Cal.5th, at p. 43.) To plead fraudulent concealment, who, when, where, and how is not the proper inquiry. (*Rattagan*, at p. 43.) Instead, the "focus of inquiry shifts to the unique elements of the claim." (*Ibid.*) The first element, concealment or suppression of a material fact, requires a plaintiff to indicate what the material fact is that was concealed. Here, the SAC alleges the omission that was material: the Subject Vehicle had a defective

10-speed automatic transmission that was subject to sudden and premature failure, presenting safety risks. This is sufficient to state the content of the alleged omission.

(2)

Duty to Disclose

Ford also argues that Plaintiff fails to specifically allege that it had a duty to disclose the defect.

“There are ‘four circumstances in which nondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts. [Citation.]’” (LiMandri v. Judkins (1997) 52 Cal.App.4th 326, 336.)

The SAC does not allege the existence of a fiduciary relationship. The other three circumstances that may constitute actionable concealment involve “the existence of some other relationship between the plaintiff and defendant in which a duty to disclose can arise.” (LiMandri, supra, 52 Cal.App.4th, at pp. 336-337.) “[S]uch a relationship can only come into being as a result of some sort of transaction between the parties.” (Id., at p. 337; Rattagan, supra, 17 Cal.5th, at p. 41.) A transaction must arise from direct dealings between the plaintiff and the defendant and cannot arise between the defendant and the public at large. (Rattagan, at p. 41; Bigler-Engler v. Breg, Inc. (2017) 7 Cal.App.5th 276, 312 [declining to find duty of manufacturer to disclose product defect to support fraud cause of action where no direct transactional relationship with consumer existed].)

Here, the SAC alleges that Plaintiffs purchased the Subject Vehicle from Diamond Ford, an authorized Ford dealership, but does not specifically allege that Plaintiff had any direct transactional dealings with Ford. (SAC, ¶ 10.) California law recognizes the “manufacturer warranties that accompany the sale of a vehicle without regard to the substantive terms of the sale contract between the buyer and the dealer [as] independent of the sale contract.” (Davis v. Nissan North America, Inc. (2024) 100 Cal.App.5th 825, 837.) Although Plaintiffs state they reviewed Ford’s marketing and

advertising materials, there is insufficient factual detail regarding these materials to conclude that they were anything more than communications to the public at large. (SAC, ¶ 65.) Similarly, Plaintiffs' allegation about conferring with "sales representatives" does not include any detail about the nature of these communications, whether the representatives were employed by Ford or the dealership, and whether they were directly soliciting business from Plaintiff. (Ibid.) The Court accordingly agrees that Plaintiffs fail sufficiently to allege Ford's duty to disclose any defects in the Subject Vehicle. The fifth cause of action of the SAC is therefore inadequately pled.

Based on the foregoing, the Court GRANTS the Motion.

(3) Reliance and the Economic Loss Rule

As the Court has granted the Motion based on the deficiency in pleading a direct transactional relationship between Plaintiffs and Ford, the Court does not reach the issues of actual and justifiable reliance and whether the fraud claim is barred by the economic loss rule.

C. Leave to Amend

Where a motion for judgment on the pleadings is granted, if the defects in the pleading can reasonably be cured by amendment, the court must grant leave to amend. (Mendoza v. Continental Sales Co. (2006) 140 Cal.App.4th 1395, 1402.) "The burden of proving such reasonable possibility is squarely on the plaintiff." [Citation.]" (Ibid.)

Plaintiffs have not opposed the Motion. They accordingly have not met their burden of establishing that the foregoing defect can be reasonably cured.

The Motion is accordingly granted without leave to amend.

CONCLUSION

The Court GRANTS Defendant Ford Motor Company's Motion for Judgment on the Pleadings, without leave to amend.

Moving party to give notice.